

**SUPERIOR COURT, STATE OF CALIFORNIA
COUNTY OF SANTA CLARA**

Department 13
Honorable Daniel T. Nishigaya
R. Belligan, Courtroom Clerk
191 North First Street, San Jose, CA 95113
Telephone: 408-882-2240

DATE: June 5, 2026

TIME: 9:00 & 9:01 A.M.

**TO CONTEST A TENTATIVE RULING, YOU MUST CALL (408) 808-6856
BEFORE 4:00 P.M. ON THE DAY PRIOR TO THE HEARING.**

**You must also inform all other sides to the issue before 4:00 P.M. the day prior to the hearing
that you plan to contest the ruling. The Court will not hear argument, and the tentative ruling will be
adopted if these notifications are not made. (Cal. Rule of Court 3.1308(a)(1); Civil Local Rule 8.D.)**

LINE #	CASE #	CASE TITLE	RULING
LINE 4	25CV464886	ROSEMARY CEJA vs NEXSENTIO et al	Motion: Leave to File On December 10, 2025, the Court sustained a demurrer to all causes of action in the original complaint with 10 days leave to amend. The 10th day fell on Saturday, December 20, 2025. The immediately following Monday, December 22, 2025, Plaintiff filed this motion. Plaintiff's unopposed motion is GRANTED. Plaintiff shall serve and file the First Amended Complaint within 5 days of the date of the hearing on this motion. Plaintiff shall prepare and submit the final order after hearing, accompanied by the necessary Form EFS-020, within 10 days of the date of the hearing.
LINE 5	25CV470186	Daniel Rasul, Jr. vs Zohaib Valani et al	Motion: Quash Subpoena OFF CALENDAR.
LINE 6	26CV484320	Capital One, N.A. vs Kathie Wright	Hearing: Petition Compel Arbitration Ctrl Click (or scroll down) on Line 6 for tentative ruling.

- oo0oo -

Calendar Line 1

Case Name: *James Choi vs WESTFIELD, LLC, a Delaware Limited Liability Company et al*
Case No.: 25CV456698

On January 16, 2025, Plaintiff filed a complaint against five named defendants. Since that time, Plaintiff seems to have been challenged in timely, and perhaps substantively, complying with his discovery obligations. As a result, the Court has sanctioned Plaintiff for discovery abuse on April 8, 2026 (Order filed May 7, 2026) and April 17, 2026 (Order filed May 15, 2026). The instant motion is the third motion to compel brought against Plaintiff for failure to provide timely discovery responses and more are on the horizon. Plaintiff should be reminded that “[i]t is a central precept to the Civil Discovery Act of 1986 (§ 2016 et seq.) ... that civil discovery be essentially self-executing. [Citation.]” [Citation.] A self-executing discovery system is “one that operates without judicial involvement.” (2 Hogan & Weber, Cal. Civil Discovery [(2d ed. 2005) Sanctions,] § 15.4, pp. 15-7 to 15-8.)” (*Clement v. Alegre* (2009) 177 Cal.App.4th 1277, 1291-1292.) Maybe it is not too late to change course.

On December 29, 2025, Defendant Nordstrom served on Plaintiff Special Interrogatories, Set One. Plaintiff’s responses were due no later than January 30, 2026. Plaintiff did not serve responses by that date. Nordstrom understandably filed this motion asking the Court to compel Plaintiff’s responses to Nordstrom’s Special Interrogatories, Set One, without objection, and to impose monetary sanctions against Plaintiff and his attorney in the amount of \$2,073.00.

Plaintiff’s opposition to the motion was due May 22, 2026. Plaintiff has not filed any opposition. “[T]he failure to file an opposition creates an inference that the motion ... is meritorious.” (*Sexton v. Super Ct.* (1997) 58 Cal.App.4th 1403, 1410; *Laguna Auto Body v. Farmers Is. Exchange* (1991) 231 Cal.App.3d 481, 489 [“appellants had ample opportunity to present their arguments and excuses to the trial court. Instead, they failed to file opposition to the motion to compel ..., leading the trial court ... to presume they had no meritorious arguments”].)

With admirable diligence and candor, Nordstrom has advised the Court that on May 13, 2026, Plaintiff finally served responses to Nordstrom’s Special Interrogatories, Set One. Those responses included objections, and Nordstrom asserts that most of the answers are vague, ambiguous, conclusory, and incomplete. Nordstrom asks the Court to compel Plaintiff to further respond to Nordstrom’s Special Interrogatories, Set One, without objection (pursuant to Code of Civ. Proc. § 2030.290(a)), and with substantive answers “within a specific number of days that this Court deems reasonable after Defendant Nordstrom serves its meet-and-confer letter on Plaintiff.” Nordstrom maintains its request for sanctions.

The trial Court is vested with substantial discretion when there was a failure to respond to discovery before the motion to compel was filed but responses are served thereafter. (*Sinaiko Healthcare Consulting, Inc. v. Pac. Healthcare Consultants* (2007) 148 Cal.App.4th 390, 409.) Here, Nordstrom’s request is reasonable and serves the best interest of judicial economy. Plaintiff failed to timely serve interrogatory responses. Plaintiff has thus “waived any right to exercise the option to produce writings under Section 2030.230, as well as any objection to the interrogatories, including one based on privilege or on the protection for work product.” (Code Civ. Proc., § 2030.290(a).) By itself, the fact that Plaintiff has responded with